

		Defendants shall give notice.
6	Pavement Recycling Systems, Inc. vs. State of California, Department of Transportation 2026-01562211	Demurrer to Complaint <i>Case dismissed. All hearings vacated.</i>
7	Serhal vs. Homesite Insurance Company of the Midwest 2026-01570046	Demurrer to Complaint <i>Hearing vacated pursuant to request.</i>
8	Sun vs. 1560 E. Warner Avenue Limited Partnership 2025-01516329	Demurrer to Amended Complaint Defendants 1560 E. Warner Avenue Limited Partnership; a California limited partnership and Andrew Pan, Julia Zhu, and John Ho's demurrer to the First Amended Complaint of Hai Sun is OVERRULED in part and SUSTAINED in part as follows: • OVERRULED as to the 1st cause of action for breach of written contract. • OVERRULED as to the 2nd cause of action for breach of implied covenant of good faith and fair dealing. • OVERRULED as to the 3rd cause of action for breach of fiduciary duty. • OVERRULED as to the 4th cause of action for accounting. • SUSTAINED as to the 6th cause of action for constructive fraud. The claim is not alleged with the required specificity. • SUSTAINED as to the 7th cause of action for declaratory relief. The requested relief is wholly derivative of other claims. Where the declaratory relief claim merely restates the same controversy as the other claims and would not independently resolve any dispute, it does not serve the

	purpose of the declaratory relief statute. <i>Siskiyou Hospital, Inc. v. County of Siskiyou</i> (2025) 109 Cal.App.5th 14. • OVERRULED as to the 9th cause of action for Judicial dissolution. Motion to Strike Portions of Complaint The motion to strike is DENIED as moot as to paragraph 26 of the 6th cause of action as the court has sustained the demurrer to this cause of action. As to prayer no. 7, “For punitive damages on the non-contract claims against the individual Defendants where authorized by Civil Code section 3294” the motion to strike is GRANTED. Civil Code section 3294 authorizes punitive damages only in an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. This statute thus establishes two threshold requirements: (1) the underlying claim must be non-contractual, and (2) the complaint must allege facts supporting oppression, fraud, or malice. Here, there are no claims asserted that allege facts showing oppression, fraud or malice. As to Prayer No. 9 of Plaintiffs’ First Amended Complaint, specifically, “For reasonable attorneys’ fees and costs where permitted by contract, statute, or equity” the motion is DENIED. A trial court is not required to strike a prayer for attorney fees at the pleading stage simply because the complaint does not yet fully establish the legal basis for such fees. In <i>Camenisch v. Superior Court</i>, (1996) 44 Cal.App.4th 1689, the Court of Appeal held that the trial court was not required to strike a prayer for attorney fees where the complaint did not allege a contract allowing recovery of attorney fees by the prevailing party, because the court was not required to strike the prayer before the plaintiff had a full opportunity to determine, through discovery, whether a basis for recovery exists. This principle reflects the broader rule that motions to strike are disfavored where the challenged matter may become relevant as the case develops. Plaintiff Sun is granted ten days leave to amend. Defendant 1560 E. Warner Avenue Limited Partnership to give notice.
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9	Titanium Coating Services, Inc. vs. Capital Asset Exchange and Trading, LLC 2026-01573519	Demurrer to Complaint <i>Continued to 10/22/26</i>
10	Western Mandarin Immersion Charter School vs. Irvine Unified School District 2026-01574037	Petition for Writ <i>Case dismissed. All hearings vacated.</i>